

While plaintiff alleges that all defendants were engaged in the allegedly fraudulent scheme to have her enter into a commercial “hard money” loan even though they knew she was not running a business and would not be able to pay off the loan, she has not alleged any facts showing that T&S actually made any misrepresentations to her, or that she relied on its misrepresentations to her detriment. Conclusionary allegations that defendants acted with malice, fraud, or oppression are not enough to support a claim for punitive damages. (*Brousseau v. Jarrett*, *supra*, 73 Cal.App.3d at p. 872.)

Nor has plaintiff alleged any other facts showing that T&S acted with malice, fraud, or oppression in its dealings with her. In fact, she has not alleged any facts showing that T&S ever communicated with her in any way or did anything to harm her. At most, the allegations of the SAC show that T&S bought the loan after plaintiff had already been persuaded to enter into it by the Evoque defendants. Therefore, plaintiff has not alleged any facts showing that defendant T&S acted with malice, fraud, or oppression, and she has not shown that she is entitled to punitive damages against T&S. As a result, the court intends to grant T&S’s motion to strike the prayer for punitive damages from the SAC.

In addition, the court intends to deny leave to amend. The plaintiff has the burden of showing that there is a possibility of amending the complaint to state a valid claim after the court sustains a demurrer or grants a motion to strike. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Here, plaintiff asks the court to grant her leave to amend if it grants the motion to strike, but she has not explained what other facts she could allege that would tend to show that T&S acted with fraud, oppression, or malice. Since plaintiff’s complaint is entirely based on the alleged fraudulent and illegal formation of the loan, and since T&S was not involved in negotiating, drafting, or executing the loan, it does not appear that there is any possibility that T&S could be liable for punitive damages in connection with the loan. Therefore, the court intends to deny leave to amend the SAC.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 5-8-26 .

(Judge’s initials) (Date)

(48)

Tentative Ruling

Re: ***Hokokian v. The California Home for the Aged, Inc., et al.***
Superior Court Case No. 24CECG05010

Hearing Date: May 13, 2026 (Dept. 403)

Motion: By Plaintiffs for Preferential Trial Setting

**If oral argument is timely requested, it will be entertained on
Wednesday, May 27, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To grant. (Code Civ. Proc., § 36, subd. (a).) To deem the present set August 10, 2026, trial date as set by preference.

Explanation:

Code of Civil Procedure section 36 governs where preference is to be granted based on age, medical reasons, in the interests of justice, or time for trial, and provides, in pertinent part:

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)

The intent behind the provision of a preferential trial setting under subdivision (a) is to safeguard litigants beyond a specified age against the risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover damages or appropriate redress. (*Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88-89.) The preference under Code of Civil Procedure section 36, subdivision (a), is mandatory if the requirements are met. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.)

Under Code of Civil Procedure section 36, subdivision (a), the court must find whether the moving party's health is such that the party would be prejudiced if the preference is not applied. (*Fox v. Superior Court, supra*, 21 Cal.App.5th at p. 535.)

Defendants argue that plaintiffs failed to show that Margaret Hokokian's health conditions are such that preference is necessary to avoid prejudice. Plaintiff Margaret Hokokian's health conditions are addressed in her attorney's declaration. A letter from her primary physician, who has monitored her health for almost six years, states that Margaret Hokokian has been diagnosed with moderately severe coronary artery disease and moderately severe valvular heart disease and her status continues to decline. Notably, her physician states, "I urge an expedited resolution to any claims." It would be reasonable to conclude that should Margaret Hokokian's health continue to regress that her conditions would become too severe to continue to participate in the action or to see the action resolve. Consequently, the motion is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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